

THE CENTRAL INDUSTRIAL SECURITY FORCE (AMENDMENT) ACT, 2009

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THE CENTRAL INDUSTRIAL SECURITY FORCE (AMENDMENT) ACT, 2009

UNION OF INDIA

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THE CENTRAL INDUSTRIAL SECURITY FORCE (AMENDMENT) ACT, 2009

Act 22 of 2009

Published on 16 March 2009

Commenced on 23 April 1936

[This is the version of this document from 16 March 2009.]

[Note: The original publication document is not available and this content could not be verified.]

An Act further to amend the Central Industrial Security Force Act, 1968.

BE it enacted by Parliament in the Sixtieth Year of the Republic of India as follows:-

1.

Short title and commence-ment. -

(1)

This Act may be called the Central Industrial Security Force (Amendment) Act, 2009.(2)It shall be deemed to have come into force on the 10th day of January, 2009.

2.

Amendment of section 2. -

In the Central Industrial Security Force Act, 1968 (hereinafter referred to as the principal Act), in section 2,-

(a)

after clause (ca), the following clause shall be inserted, namely:-

(cb)

"joint venture" means a venture jointly undertaken by the Central Government or State Government with private industrial undertaking;

(b)

after clause (g), the following clause shall be inserted, namely:-

(ga)

"private industrial undertaking" means an industry owned, controlled or managed by a person other than the Central or State Government or any industrial undertaking in public sector;".

3.

Amendment of section 3. -

In section 3 of the principal Act, in sub-section (1), after the words "industrial undertakings owned by that Government", the words ", joint venture or private industrial undertaking" shall be inserted.

4.

Amendment of section 4. -

In section 4 of the principal Act, for sub-section (1), the following sub-section shall be substituted, namely:-

(1)

The Central Government may appoint a person to be the Director-General of the Force and such other supervisory officers as considered necessary.

5.

In section 7 of the principal Act, in sub-section (2),-

(i)

for the words "an Inspector-General, a Deputy Inspector-General, a Commandant, a Deputy Commandant or an Assistant Commandant", the words "such other supervisory officers as considered necessary" shall be substituted;

(ii)

after the words "industrial undertaking", the words ", joint venture or private industrial undertaking" shall be inserted.

6.

Amendment of section 10. -

In section 10 of the principal Act,-

(i)

in clause (c), after the word "safeguard", the words "any joint venture, private industrial undertaking and" shall be inserted;

(ii)

in clause (h), after the words "any other duty", the words "within and outside India" shall be inserted.

7.

Amendment of section 14. -

In section 14 of the principal Act,-

(a)

in the marginal heading, after the words "public sector", the words ", joint venture or private sector" shall be inserted;

(b)

in sub-section (1), after the words "public sector", the words ", joint venture or private sector" shall be inserted;

(c)

in the proviso to sub-section (2), for the words "one month's notice", the words "three month's notice" shall be inserted.

8.

Amendment of section 15. -

In section 15 of the principal Act, in sub-section (1), after the word "within", the words " or outside" shall be inserted.

9.

Repeal and saving. -

(1)

The Central Industrial Security Force (Amendment) Ordinance, 2009 is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the principal Act, as amended by the said Ordinance, shall be deemed to have been done or taken under the principal Act, as amended by this Act.

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